

STATE OF NEW YORK

7769--A

Cal. No. 1060

2025-2026 Regular Sessions

IN SENATE

May 6, 2025

Introduced by Sen. BASKIN -- read twice and ordered printed, and when printed to be committed to the Committee on Environmental Conservation -- reported favorably from said committee, ordered to first report, amended on first report, ordered to a second report and ordered reprinted, retaining its place in the order of second report

AN ACT to amend the environmental conservation law, in relation to extending the authority of the department of environmental conservation to manage oysters

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

- 1 Section 1. Subdivision 3 of section 13-0323 of the environmental
2 conservation law, as amended by chapter 367 of the laws of 2022, is
3 amended to read as follows:
4 3. The department may, until December thirty-first, two thousand
5 ~~[twenty-five]~~ twenty-seven, fix by regulation measures for the manage-
6 ment of oysters (Family Ostreidae) including size limits, catch and
7 possession limits, open and closed seasons, closed areas, restrictions
8 on the manner of taking and landing, requirements for permits and eligi-
9 bility therefor, recordkeeping and identification requirements, require-
10 ments on the amount and type of fishing effort and gear, and require-
11 ments relating to transportation, possession and sale, provided that
12 such regulations are no less restrictive than requirements set forth in
13 this chapter.
14 § 2. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets ~~[-]~~ is old law to be omitted.

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